

HOUSE BILL 1858

By Wright

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7 and Title 8, Chapter 44, relative to
community meetings conducted with electronic
participation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-44-108(a), is amended by adding
the following new subdivisions:

() "Community meeting" means the convening of members of a community in a
political subdivision to discuss and receive information about community public business;

() "Local governing body" means a local governmental public body that consists
of two (2) or more members with the authority to make decisions for or
recommendations to a public body on policy or administration;

SECTION 2. Tennessee Code Annotated, Section 8-44-108, is amended by adding the
following as a new subsection:

(i) A local governing body may allow participation in community meetings by
electronic means of communication. A local governing body holding a community
meeting with a member or members of the local governing body participating by
electronic means of communication shall:

(1) Allow members of the public to:

(A) View and listen to the community meeting by electronic
means in real time if the community meeting is conducted using video
conference, or listen to the community meeting by electronic means in
real time if the meeting is conducted using audio conference with no
video; and

(B) Participate by electronic means of communication, if participation would normally be allowed at the community meeting;

(2) Provide notice of the community meeting by publishing:

(A) A statement that the meeting will include members of the local governing body participating by electronic means of communication;

(B) The address of the physical location where members of the public may attend the meeting, if there is to be an in-person component of the community meeting; and

(C) Information necessary for members of the public to access the community meeting by electronic means of communication to participate, view, or listen;

(3) Make a recording of the community meeting, and post the recording or a link to the recording on the local governing body's website. The local governing body shall post the recording or link to the recording as soon as possible but no later than four (4) business days after the community meeting. The governing body shall continue to publish on its website the recording or link to the recording for at least one (1) year, and shall retain the recording for at least three (3) years after the recording was created;

(4) Ensure that each member of the local governing body participating by electronic means of communication is able to simultaneously hear each other and speak to each other during the meeting. A member participating by electronic means of communication shall identify the persons present in the room from which the member is participating;

(5) Ensure that members of the local governing body participating in a community meeting by electronic means are identifiable by name to the public throughout the duration of the meeting; and

(6) Not vote on any matter during a community meeting where the members are participating by electronic means.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.